

STATE OF TEXAS v. MARCUS REED	IN THE DISTRICT COURT 147TH JUDICIAL DISTRICT TRAVIS COUNTY, TEXAS
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Cause No. D-1-DC-26-11842	Date Executed January 20, 2026	Declarant Marcus Reed
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DECLARATION OF MARCUS REED

DECLARATION

1. My name is Marcus Reed. I am over eighteen years of age, of sound mind, and capable of making this declaration. The facts stated below are based on my personal knowledge.
2. On the night of January 14, 2026, I was driving east on E. Riverside Drive in Austin. I used my turn signal before changing lanes, and I do not believe I crossed the fog line or weaved in the way the officers later claimed.
3. After I was pulled over, Officer Alvarez came to my window and asked for my license and insurance. I was nervous because I had been stopped by police at night, but I was cooperative.
4. Very soon after I got out of the car, the officers told me to put my hands behind my back and handcuffed me. I remember being handcuffed almost immediately, before any search happened.
5. I did not freely consent to a search of my car. When Officer Alvarez asked about searching, I told him that I did not want him to search the vehicle. The officers kept pressing after I resisted, and I did not feel like I had any real choice because I was already handcuffed and being detained.
6. I did not tell the officers they could search because I wanted them to. At most, my response was made after repeated pressure while I was in handcuffs and surrounded by officers.
7. Later, at the station, Detective Morales started asking me questions before I was advised of my rights. Early in the questioning he asked me about the gun in the glove compartment and other things found in the car before he went over any Miranda warnings with me.
8. I was not advised of my rights until later, after the questioning had already started. By that point I had already answered questions while in custody.

VERIFICATION

I declare under penalty of perjury that the foregoing is true and correct.

Executed on January 20, 2026, in Travis County, Texas.

/s/ Marcus Reed

Marcus Reed

Prepared for defense review. This declaration is a sample case document for demonstration purposes.